

**CV-26-000478 DONAHUE, JOSEPH THOMAS vs MAYOL, TRENTON – a)
Defendants Pacific Southwest Container, LLC and Trenton Mayol S
Demurrer to Plaintiff Joseph Thomas Donahue S First Amended Complaint
-- CONTINUED, on the Court's own motion. b) Defendants Pacific
Southwest Container, LLC and Trenton Mayol S Motion to Strike Portions
of Plaintiff Joseph Thomas Donahue S First Amended Complaint
–CONTINUED, on the Court's own motion.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) The Court notes Plaintiff's failure to respond to Defendants' meet and confer correspondence and total failure to engage in the statutorily required meet and confer process. Code of Civ. Proc. §430.41. In fact, Plaintiff's Opposition makes no reference whatsoever to his meet and confer obligations

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CV-26-000478 - DONAHUE, JOSEPH THOMAS vs MAYOL, TRENTON – a) Defendants Pacific Southwest Container, LLC and Trenton Mayol S Demurrer to Plaintiff Joseph Thomas Donahue S First Amended Complaint -- CONTINUED, on the Court's own motion. b) Defendants Pacific Southwest Container, LLC and Trenton Mayol S Motion to Strike Portions of Plaintiff Joseph Thomas Donahue S First Amended Complaint –CONTINUED, on the Court's own motion.

a) The Court notes Plaintiff's failure to respond to Defendants' meet and confer correspondence and total failure to engage in the statutorily required meet and confer process. Code of Civ. Proc. §430.41. In fact, Plaintiff's Opposition makes no reference whatsoever to his meet and confer obligations - did not deny receiving same, did not address meet and confer obligations, and did not explain his failure to engage in the required meet and confer.

Accordingly, this motion is continued to September 30, 2026, at 8:30 am in Department 24 of this Court for the required meet and confer to take place "in person, by telephone, or by video conference" and for a determination of whether an agreement can be reached that would resolve the objections raised in the demurrer. The parties shall file a Joint Status Statement no later than September 22, 2026, detailing their meet and confer efforts and advising the Court as to the status of the demurrer.

The parties are advised that good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424).

b) The Court notes Plaintiff's failure to respond to Defendants' meet and confer correspondence and total failure to engage in the statutorily required meet and confer process. Code of Civ. Proc. §435.5. In fact, Plaintiff's Opposition makes no reference whatsoever to his meet and confer obligations - did not deny receiving same, did not address meet and confer obligations, and did not explain his failure to engage in the required meet and confer.

Accordingly, this motion is continued to September 30, 2026, at 8:30 am in Department 24 of this Court for the required meet and confer to take place "in person, by telephone, or by video conference" and for a determination of whether an agreement can be reached that would resolve the objections raised in the demurrer. The parties shall file a Joint Status Statement no

later than no later than September 22, 2026, detailing their meet and confer efforts and advising the Court as to the status of the motion to strike.

The parties are advised that good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424).